

FORM 20 — AFFIDAVIT OF CORY LEA SHEPHERD (FINAL)

Industrial Relations Act 2016, s 989; Industrial Relations (Tribunals) Rules 2011, rr 52, 53, 55
Filed in support of the Form 4 — Application in Existing Proceedings (rule 64G), WC/2024/227.

⚠ Pre-swear checklist (everything else is final):

- 1. Exhibit mapping CS-1 to CS-9** — confirm each against your Form 21 certificates. Confirmed provenance: **CS-8 = monthly emergency-code statistics; CS-9 = MSH's 5 June 2026 letter (K-LM26/729)**. CS-5/6/7 are your further individual examples — confirm contents.
- 2. Do NOT annex the Respondent's 11 June 2026 bundle.** Pages 5–10 of it (the Reese/McGinley emails and the ESU/PID material) are reserved and stay off the WC paper. Paragraph 9 refers to that disclosure without annexing it.

OFFICIAL FORM 20 — FIELDS (transcribe into the QIRC PDF)

1. Matter details — Applicant: Cory Lea Shepherd v Respondent: Workers' Compensation Regulator. Filed for: ☒ Applicant/Appellant. **2. Contact details of party filing** — Mr Cory Lea Shepherd, 15 Edmond Street, Coomera QLD 4209; Mobile 0417 400 227; coryshepherd1@hotmail.com. **3. Deponent's details** — Mr Cory Lea Shepherd, 15 Edmond Street, Coomera QLD 4209. **4. Evidence** — *"I do solemnly and sincerely affirm and declare that I affirm the matters set out in the affidavit annexed hereto, comprising numbered paragraphs 1 to 19 on the pages that follow, each of which is signed by me and by the witness."* **5. Signature** — affirmed at [place] on [date]; deponent Cory Lea Shepherd; before [witness — JP / Cdec / Lawyer].

ANNEXED AFFIDAVIT — I, CORY LEA SHEPHERD, of 15 Edmond Street, Coomera QLD 4209, do solemnly and sincerely affirm and declare:

My role

1. I am the Appellant. I am employed by Metro South Hospital and Health Service ("MSH") as an Administration Officer (AO3) at the Logan Hospital Switchboard. I make this affidavit in support of my application under rule 64G for the Commission to decide MSH's objection of 5 June 2026 to my Notice of Non-Party Disclosure. The facts are within my own knowledge except where I state the source of my information and belief.

2. The Logan Hospital Switchboard is the hospital's communications hub, and I work there as the operator. In a typical shift I personally handle in the order of 250 to 300 incoming and outgoing calls. I coordinate the activation of life-safety emergency clinical codes — Code Blue and MET (Medical Emergency Team) calls — through the SPOK clinical paging system, and I relay urgent clinical communications, including pathology results, between clinicians. Any delay or misdirection in these communications is a matter of patient safety.

3. My duties also include receiving and recording complaints directed to the Switchboard — including complaints about requests that were not actioned, and about pager, telephone and contact-directory entries that lagged behind staffing and roster changes, causing calls and pages to be misdirected; handling calls and paging outside ordinary hours and after hours; and absorbing changes to the roster and to operating procedures. Those changes were issued by the Line Manager and by a second manager in the Switchboard's reporting line; were frequently communicated at short notice and "effective immediately"; and were at times made without any communication to the Switchboard at all. The call volumes, the times and durations of calls, the emergency-code activations, and the records of those complaints, directives, updates and roster changes are all recorded in MSH's systems. The call figures I give are my own estimate from direct experience; the complete and exact records exist only within MSH's systems, which is why I seek them at Items 1, 2, 3(a) and 10.

4. The second manager held a telecommunications management role that performed the same communications function the Switchboard itself performed. Under that arrangement, telephone and contact-directory updates were restricted to, and controlled by, that manager, who to my observation attended the office approximately two days per week and was otherwise at a remove from the day-to-day operating environment. The practical effect was that updates the Switchboard needed in order to direct calls and pages correctly had to await action by that manager, rather than being applied by the Switchboard directly — which is the source of the lag and the misdirected calls and pages I describe at paragraph 3.

The appeal and the matter in issue

5. I have appealed the Regulator's rejection of my claim for a psychiatric injury (Major Depressive Disorder with anxious distress), with date of onset 18 June 2024, sustained in the course of that employment. The appeal is before Commissioner Dwyer and proceeds *de novo*.

6. The matter in issue is the Respondent's defence under s 32(5)(a) of the *Workers' Compensation and Rehabilitation Act 2003* — that the injury arose out of reasonable management action taken in a reasonable way. The stressors I rely on are pleaded in my Amended Statement of Facts and Contentions filed 7 April 2026 ("the Amended 9A").

The Form 29 and the objection

7. On 22 April 2026 the Industrial Registry sealed my Notice of Non-Party Disclosure (Form 29) ("the Form 29"), which was served on MSH as the affected non-party. The Form 29 sought twenty Items of documents held in MSH's systems, each tied, by a Relevance Anchor Table in its Continuation Schedule, to a pleaded stressor and to an admitted fact in the Respondent's Form 24.

8. By letter dated 5 June 2026 (ref K-LM26/729), signed by the Chief Executive of MSH, MSH objected to production of part of the Form 29, complied with some Items, and stated that documents responsive to other Items did not exist. A true copy of that letter is **Exhibit CS-9**.

9. On 12 June 2026 I made an application under rule 64G(1) for the Commission to decide the objection, within the seven-day period. On 15 June 2026 the Registry declined to accept that application on format grounds. This Form 4 and this affidavit are the corrected re-filing in the approved form.

The documents exist and are within MSH's control

10. The records I seek are within MSH's exclusive possession or control — its email system, its Active Directory / Entra / Citrix identity-management environment, its Security Access swipe-card system, its meeting and governance records, and its roster and HR systems. As the Switchboard operator I cannot produce them. The Switchboard office is collocated with other departments and is entered through building and floor swipe-card access points; the records I seek at Item 9 are the Line Manager's entry and exit records at those access points, which bear on the Line Manager's physical presence (Stressor 1(a)). I do not seek a dedicated reader on the Switchboard office door.

11. On 11 June 2026 the Respondent disclosed to me a bundle it described as "received through Notice of Non-Party Disclosure request and conferencing." That bundle included screenshots of my myHR leave record (Process Reference 15480560) — the same leave record that MSH separately produced, in formal form, on 5 June 2026 in compliance with Item 11. The Respondent obtained that record, held within MSH's systems, through the conferencing channel and without itself issuing a Form 29 (Admitted Fact: Form 24, Para 25). This confirms that the records I seek are real, are held within MSH's systems, and are retrievable. I do not annex that bundle.

12. I have been able to obtain individual examples of the classes of document I seek, which I exhibit to show the documents are real, while the complete corpus remains only within MSH's systems:

- the Line Manager's email of 9 May 2024 recording that a doctor's hours were "not provided on the rosters" and that a contact number was "switched off" — **Exhibit CS-1**;
- the "switchboard issues" misdirected-call logs of 2, 3, 5, 7 and 8 May 2024 prepared by the MASPER Registrar — **Exhibit CS-2**;
- examples of the Line Manager's "effective immediately" operational directives to the Switchboard — **Exhibit CS-3**.

(Adjust CS-numbers to match the Form 21 certificates.)

The union-delegate request (Item 19)

13. On **18 May 2024** I made a request to my union, Together (to Ms Heather Hayes), for delegate assistance in relation to my workplace conditions. The union correspondence of **18–20 May 2024** records that request and its forwarding to MSH. A true copy of that correspondence is **Exhibit CS-4**.

14. To my knowledge MSH did not act on that delegate request between 18 May 2024 and the date of my injury, 18 June 2024. Item 19 of the Form 29 seeks MSH's receipt and handling (or non-handling) of that request over that period.

15. Item 19 of the Form 29 had, in error, anchored the union-delegate matter to a text message of 5 March 2024 and a date range commencing 1 March 2024. The correct anchor is my request to Together of **18 May 2024**, and the period pressed is confined to **18 May 2024 to 18 June 2024**. This narrows Item 19; it does not expand it. It was always confined to identified custodians (the Line Manager, the Director, the Logan Hospital health-team mailbox and HR), not a search of all staff.

The emergency-code and patient-safety context

16. The records sought at Items 1, 2, 3(a) and 8–10 bear on whether time-critical clinical and emergency communications were delayed or misdirected during the pleaded period. The aggregate code figures I summarise are drawn from the monthly emergency-code statistics at **Exhibit CS-8**; the underlying source records are within MSH's systems.

17. I have followed the non-party disclosure process required by the Rules. I am informed and believe that the Respondent obtained my primary medical records without itself issuing a Form 29 (Admitted Fact: Form 24, Para 25).

Verification

18. I make this affidavit to prove the facts on which my application relies. I do not seek the review, reading or relevance-assessment of any email by MSH; I seek only the native electronic export of the records returned by the server-side filters described in the Form 29, or, where a record does not exist, a statement on oath to that effect by MSH's Chief Executive or a delegated Director after a defined search.

19. The matters in this affidavit are true and correct. Where based on information and belief, I have stated the source. I understand that it is a criminal offence to provide a false matter in an affidavit, including the offence of perjury under s 123 of the *Criminal Code*.

AFFIRMED at [place] on [date]

Deponent: _____ Cory Lea Shepherd

Before me: _____ [Justice of the Peace / Commissioner for Declarations / Lawyer]

EXHIBITS (Form 21 Certificate of Exhibit for each — confirm/adjust)

- **CS-1** — Line Manager email, 9 May 2024 (rosters/contact number)
- **CS-2** — MASPER "switchboard issues" misdirected-call logs, 2–8 May 2024
- **CS-3** — "effective immediately" operational directives (examples)
- **CS-4** — Together union correspondence, **18–20 May 2024** (Ms Heather Hayes)
- **CS-5 / CS-6 / CS-7** — [your further individual examples — confirm]
- **CS-8** — Monthly emergency-code statistics (Code Blue/MET activation counts), Logan Switchboard
- **CS-9** — MSH's letter of 5 June 2026 (K-LM26/729)

*The Respondent's 11 June 2026 disclosure is referred to at paragraph 9 but is **not annexed** (it carries reserved material on pp 5–10).*